



Quotation Ref: 00057985-ver00

Quote Date: Feb 12, 2026

Quote Valid Until: Jul 10, 2026

National Cancer Institute (NCI) - Frederick
Boyles Street
Frederick, Maryland, 21702
United States

Dear PING

I am pleased to provide you with a price quote for a service contract on your flow cytometer system. Cytek's service contract will ensure your cytometer keeps running at optimal performance with minimal downtime.

We look forward to continue providing your lab with outstanding service and support. If you have any questions, please do not hesitate to contact me.

Sincerely,

Mike Nygard
Service Sales Representative
Email: mnygard@cytekbio.com

National Cancer Institute (NCI) - Frederick
 Boyles Street
 Frederick, Maryland, 21702
 United States

Item	Description	Product Number	Qty	List Price USD	Net Price USD	Ext.Price USD
1	Aurora 3 Laser with loader - Gold (RUO and CLC)	N9-90551	1	25,458.00	20,366.40	20,366.40
Contract Start Date: 11-Jul-2026 Contract End Date: 10-Jul-2027 - Base Year						
Serial Number: R1623						
2	Aurora 3 Laser with loader - Gold (RUO and CLC)	N9-90551	1	25,458.00	20,366.40	20,366.40
Contract Start Date: 11-Jul-2027 Contract End Date: 10-Jul-2028 - Option Year 1						
Serial Number: R1623						
3	Aurora 3 Laser with loader - Gold (RUO and CLC)	N9-90551	1	25,458.00	20,366.40	20,366.40
Contract Start Date: 11-Jul-2028 Contract End Date: 10-Jul-2029 - Option Year 2						
Serial Number: R1623						
4	Aurora 3 Laser with loader - Gold (RUO and CLC)	N9-90551	1	25,458.00	20,366.40	20,366.40
Contract Start Date: 11-Jul-2029 Contract End Date: 10-Jul-2030 - Option Year 3						
Serial Number: R1623						
5	Aurora 3 Laser with loader - Gold (RUO and CLC)	N9-90551	1	25,458.00	20,366.40	20,366.40
Contract Start Date: 11-Jul-2030 Contract End Date: 10-Jul-2031 - Option Year 4						
Serial Number: R1623						
Total						101,832.00

- All prices in **USD**.
- The above quotation does not include any applicable sales tax.
- This quote is valid through July 10th, 2026.

Special Terms and Conditions

*Quote includes multi-unit/year discounting, as well as waiver of quarterly invoicing surcharge.

**To be invoiced quarterly, in arrears, at the end of each period of performance.

GENERAL TERMS & CONDITIONS (SERVICE)

1. Agreement

These Standard Terms and Conditions ("Terms") for equipment services apply to the services described on the Quotation ("Services") provided by Cytek Biosciences, Inc. or its affiliate (referred to in these Terms as "Cytek," "our," "we" or "us") to the customer identified in the Quotation (referred to in these Terms as "Customer," "you" or "your"). By accepting the Quotation, Customer agrees to these Terms (with the Quotation and any attachments incorporated by reference herein or therein, the "Agreement"). Any terms or conditions included with a purchase order, order acknowledgement or any other documents relating to the Services will be null and void.

Upon receipt of Customer's purchase order, Cytek agrees to provide the Services during the term of this Agreement as set forth herein for each Covered Product, at the address specified in the Quotation. Cytek reserves the right to determine the designation and allocation of Cytek personnel, or third parties authorized by Cytek, to provide Services under this Agreement.

2. Defined Terms

"Covered Product(s)" means the Cytek products listed in the Covered Products table specified in the Quotation.

"Covered Software" means all (i) unmodified, generally available and commercially released software manufactured by Cytek and distributed by or on behalf of Cytek for use with the Covered Products purchased by Customer, and (ii) Updates (as defined herein) thereto.

"Customer" means the purchaser of Services.

"Customer Site" means the Customer facility or facilities where the Covered Products are located as set forth on the Quotation.

"Cytek Repair Depot" means the Cytek depot repair centers closest to the corresponding geographical location of the Customer Site.

"Error" means any material failure of a Covered Product to substantially conform to its Specifications. However, any nonconformity resulting from Customer's misuse, improper use, alteration or damage of the Covered Products, or Customer's combining or merging the Covered Products with any hardware or software not certified by Cytek shall not be considered an Error.

"Repair Services" means Services performed at the Customer Site (or at a Cytek Repair Depot for Cytek® Guava® Muse® Depot Service Plan) under this Agreement to identify performance issues, troubleshooting and repair of the Covered Products to comply with the Specifications.

"Modification" means required technical service bulletins that modify the hardware of the Covered Products.

"Parts" means replacement components incorporated into a Covered Product in connection with Services provided under this Agreement.

"Preventative Maintenance Services" means examining and performing preventative maintenance for Covered Products, which will be provided to Customer once (1) per contract year.

"Services" means Repair Services, Preventative Maintenance Services and other Cytek product-related services that Cytek performs under the terms of this Agreement.

"Service Call" means an on-site scheduled visit to the Customer Site for the purpose of performing Services; provided, however, for a Cytek® Guava® Muse® Depot Service Plan, "Service Call" means a scheduled shipment of the Covered Products from the Customer Site to the Cytek Repair Depot for performing Services.

"Service End Date" means the applicable date indicated in the Quotation under the heading "Service End Date."

"Specifications" means the written product specifications expressly set forth in the end user manual accompanying the applicable Covered Product.

“**Updates**” means any corrections, bug fixes and/or minor changes to the Covered Software that (i) do not alter the functionality of or add new functions to the Covered Software, (ii) are not new versions of the Covered Software, (iii) are generally made available to customers by Cytek, and (iv) are provided by Cytek to Customer under this Agreement.

3. Service Hours & Access Points

All Service Hours are provided 8:00 a.m. to 5:00 p.m. local time Monday – Friday, excluding Cytek-designated holidays. Service Calls are performed local time by region where Services are performed.

4. Response Time

For Premium, Gold, or Complete service contract coverage, the technical support response time is guaranteed as 48 hours for functional instruments and 24 hours for non-functional instruments (excluding weekends and Cytek-designated holidays), with escalation to the top of our priority field service job queue. For other service contract coverage, a response time is guaranteed as noted in the service plan quotation cover letter.

5. Parts

At Cytek’s discretion, Parts supplied may be new or refurbished to original Specifications. Parts that are removed for replacement in connection with Services become the property of Cytek. Cytek may elect to replace the loader, in its sole discretion.

6. Unscheduled and Extended Maintenance Services

Customer may request additional maintenance services beyond the Services described herein and/or the Quotation. In the event Cytek agrees to provide such additional services, Customer agrees to pay Cytek the then-current costs for any Parts supplied by Cytek and the then-current applicable hourly labor rates and travel expenses for any such additional services, as solely determined by Cytek.

7. Instrument Qualification/Pre-inspection

In order for an instrument not previously under continuous coverage by Cytek to qualify for coverage, a service pre-inspection will be scheduled to assess and recertify the current condition of the instrument(s) prior to the commencement of a service plan. Any parts/labor/travel/shipping costs required for such pre-inspection will be billed to Customer at then current rates.

8. Term, Pricing and Payment Terms

The term of this Agreement shall commence on the Effective Date and expire on the Service End Date, both as set forth in the Quotation, subject to earlier termination as provided herein. Cytek reserves the right to modify, adjust, or amend the method, manner, or means by which the Services are provided at any time. Payments made under this Agreement shall be due net thirty (30) days from the date of the Cytek invoice. Cytek may delay or postpone performance of Services if payment is not received before Services are scheduled. All payments are final and are not subject to refund.

9. Termination for Cause

A service plan may not be canceled or terminated for any reason other than for “cause” as set below with 30 days written notice to the breaching party. “Cause” includes:

- Customer fails to pay Cytek any payments due within 15 days after Cytek notifies Customer of non-payment.
- A party is in Default as defined in section 10 below.

The parties acknowledge and agree that Customer’s discontinued use of an instrument is not a valid basis for termination for cause and Customer will not be entitled to any credits or refunds in connection with any such termination.

If Customer receives a discounted price for Services as part of any multi-instrument and/or multi-year contract, any termination of this Agreement by Customer for any reason (except Default by Cytek) with respect to one or more Covered Products prior to the applicable Service End Date will require an adjustment to the price for Services. Accordingly, Customer will be required to pay to Cytek for the price difference between the applicable Service list price as of the Effective Date and the discounted price that was extended to Customer. Customer shall pay such price difference to Cytek no later than the effective date of any such termination.

10. Default

A “Default” under this Agreement by a party shall be deemed to have occurred when such party has breached a material provision of the Agreement and has failed to cure said breach within thirty (30) days after receipt of written notification thereof by the other party (15 days in the case of breach due to non-payment by Customer as provided in Section 9 above). The failure of Customer to make payments when due or to provide Cytek access to the Covered Products or perform Customer Responsibilities as set forth in section 13 shall be deemed breaches of a material provision of this Agreement.

Notwithstanding the foregoing, a notice period is not required and a Default shall be deemed to have occurred in the event of

Customer's filing of a petition of bankruptcy, assignment for the benefit of creditors, or insolvency.

In the event of Default by a party, the other party may, in addition to any and all other remedies available to it in law and equity, terminate this Agreement, subject to the section 9 above. No delay or failure by the non-breaching party to exercise any right or remedy operates as a waiver thereof.

11. Excluded Parts

For Cytek Aurora™ CS, Cytek Aurora™ and Cytek Northern Lights™ systems, any accessories or options not specifically provided for in this Agreement are excluded. Parts excluded from this Agreement are consumable parts defined by the manufacturer, common usage items (including, but not limited to, tubes, program diskettes, tubing, o-rings, tanks, nozzle tips), and other usual customer maintenance items. For Cytek® Amnis® or Cytek® Guava® systems, the laptops associated with the Covered Products are excluded. Additional items excluded from this Agreement are hardware, mechanical and electrical components, assemblies, software and firmware for discontinued products or product lines, biosafety cabinets, Jun-Air air compressors and/or other third-party equipment.

12. Excluded Services

Excluded from Services under this Agreement are any services performed due to damage or failure of Covered Products related to (1) accident, misuse, neglect, fire, war, power outages or electrical problems that are external to the Covered Products or failure to use the Covered Products in compliance with end user manual, (2) damage or destruction caused by fire, explosion, or any act of God, (3) relocation, transportation or reinstallation of the Covered Products, (4) unauthorized alterations of the Covered Products, (5) use of chemicals that are not used for normal operation of the Covered Products, or problems caused by defective or contaminated standards or reagents, (6) use of third party hardware or software, including but not limited to laptops manufactured by third parties that are not supplied by Cytek, (7) decontamination due to spillage, (8) repair of accessories not listed nor included in this Agreement, (9) improper instrument decontamination resulting in corrosion/optic degradation, (10) equipment malfunction due to sub-standard power, and (11) advanced applications training. Any questions regarding any third party warranty should be directed to such third party and not Cytek. Software installation not performed by Cytek is not covered and consultation regarding use of software not provided by Cytek is not covered. In the event that services are provided due to one or more of the above reasons, Customer will be charged at Cytek's then current standard hourly rates.

13. Access and Customer Responsibilities

In order for Cytek to perform Services hereunder, Customer shall provide Cytek access to the Covered Products at the Customer Site as reasonably requested, and provide required facilities such as working space, electricity, telephone services and any other facilities and support reasonably necessary to enable Cytek to perform the Services, at no charge to Cytek. Customer shall also make employees of Customer having familiarity with the Covered Products available to Cytek for consultation.

For Depot Service plans relating to Cytek® Guava® Muse® systems, in order for Cytek to perform Services hereunder, Customer shall promptly ship the Covered Products to Cytek Repair Depot in accordance with Cytek's instructions, and provide reasonably necessary support to enable Cytek to perform the Services. Customer shall also make available to Cytek for consultation employees of Customer having familiarity with the Covered Products.

14. Computer Coverage

The Services cover only the computer system and Covered Software necessary for running the Covered Products. Other third-party applications and network connections, and issues arising therefrom, are not covered under this Agreement.

15. Revisions and Upgrades

Cytek periodically releases product or software revisions to rectify known issues or improve product performance. Revisions will be provided at no charge to Customer. Cytek may also upgrade its products or software from time to time to add functionality. Upgrades are generally provided at Cytek's election, at a cost.

16. Intellectual Property

Customer acknowledges and agrees that (i) all intellectual property rights relating to or residing in Services are solely and exclusively owned by Cytek and (ii) Customer receives no rights or licenses to Cytek intellectual property rights by virtue of Customer's purchase of the Services.

17. Warranty and Limitations

Cytek warrants that the Services will be performed in a workmanlike manner and that the Parts replaced hereunder shall conform to Cytek's specifications and shall be free from defects in material and workmanship for one (1) year from the date the Services are performed. Unless otherwise included in the Services purchased by the Customer, any labor costs related to the replaced Parts shall be covered for a period of ninety (90) days from the date the Services are performed. Customer's sole and exclusive remedy with

respect to Parts and/or Services that are defective or nonconforming, as reasonably determined by Cytek, will be replacement or repair of such Parts and/or reperformance of Services without charge. Cytek shall use commercially reasonable efforts to assist Customer to obtain the benefit of any third-party warranties related to hardware or software which are provided with the Covered Products.

CYTEK MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, OF ANY KIND UNDER THIS AGREEMENT, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT OR MIS-APPROPRIATION OR REGARDING RESULTS OBTAINED THROUGH THE USE OF ANY COVERED PRODUCT, PART, OR SERVICE.

NEITHER PARTY SHALL BE LIABLE IN ANY EVENT FOR INCIDENTAL, CONSEQUENTIAL, INDIRECT, SPECIAL, PUNITIVE, MULTIPLE, EXEMPLARY, OR ENHANCED DAMAGES, OR LOST PROFITS OR REVENUES ARISING OUT OF, RELATING TO OR IN CONNECTION WITH THIS AGREEMENT OR THE SUBJECT MATTER HEREOF, INCLUDING, WITHOUT LIMITATION, ANY CLAIM THAT USE OF COVERED PRODUCTS OR COVERED SOFTWARE CAUSED AN INACCURATE TEST RESULT OR MISDIAGNOSIS REGARDLESS OF (A) WHETHER SUCH DAMAGES WERE FORESEEABLE, (B) WHETHER OR NOT EITHER PARTY WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES AND (C) THE LEGAL OR EQUITABLE THEORY (CONTRACT, TORT OR OTHERWISE) UPON WHICH THE CLAIM IS BASED.

EXCEPT AS OTHERWISE PROVIDED HEREUNDER IN NO EVENT SHALL EITHER PARTY'S MAXIMUM AGGREGATE LIABILITY ARISING OR RELATED TO THIS AGREEMENT, EXCEED THE AMOUNT PAID BY CUSTOMER HEREUNDER FOR THE SERVICE GIVING RISE TO THE CLAIM. ANY ACTION ARISING OUT OF THIS AGREEMENT SHALL BE BROUGHT BY CUSTOMER UP TO ONE YEAR AFTER THE DATE OF THE ACTIONABLE CAUSE.

THIS SECTION WILL SURVIVE THE CANCELLATION, COMPLETION, OR OTHER TERMINATION OF THIS AGREEMENT FOR ANY REASON.

18. Governing Law

California law without regard to principles of conflicts of laws will govern this Agreement.

19. Communication

All notices, requests, claims and other communications hereunder shall be in writing and shall be given by delivery via e-mail to technicalsupport@cytekbio.com for all customers.

20. Non-exclusion

Cytek represents to Customer that Cytek and its directors, officers, and key employees as of the Effective Date: (i) are not currently excluded, debarred, or otherwise ineligible to participate in the federal health care programs as defined in 42 U.S.C. § 1320a-7b(f) or any state healthcare program (collectively, the "Healthcare Programs"); (ii) have not been convicted of a criminal offense related to the provision of healthcare items or services but have not yet been excluded, debarred, or otherwise declared ineligible to participate in the Healthcare Programs; and (iii) are not under investigation or otherwise aware of any circumstances which may result in Cytek being excluded from participation in the Healthcare Programs.

21. Miscellaneous

The terms and conditions of this Agreement, and any document referred to on the face hereof, constitute the entire agreement between Customer and Cytek regarding the subject matter hereof and supersede all prior or co-existing communications and agreements regarding such subject matter. This Agreement cannot be modified except by a written document (which states that it is an amendment) signed by authorized signatories of both parties. Either party's failure to strictly enforce any term or condition of this Agreement or to exercise any right, power or privilege arising hereunder shall not constitute a waiver of that party's right to strictly enforce such terms or conditions or exercise such right, power or privilege thereafter. In the event either party is precluded from performing its obligations under this Agreement due to circumstances beyond its control ("Force Majeure"), including without limitation war, acts of terrorism, pandemic, flood, earthquake, government actions and labor unrest, that party's failure to perform shall not constitute a breach of this Agreement for so long as such conditions persist. Notwithstanding the foregoing, a Force Majeure event shall not relieve Customer of its payment obligations herein. This Agreement and its terms are confidential. Neither party shall make any public statements regarding the other or the Services provided under this Agreement without the prior written consent of the other party. Cytek shall comply with applicable requirements of Customer's vendor credentialing service. All rights and remedies under this Agreement are cumulative and are in addition to any other rights and



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Quote Date: Feb 12, 2026

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remedies each party may have at law or in equity. If any provision of this Agreement shall be held invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions, rights, powers and privileges shall not be affected or impaired thereby. Neither this Agreement nor any rights hereunder shall be assigned or otherwise transferred by Customer (by operation of law or otherwise) without the prior written consent of Cytek and any unauthorized transfer or assignment shall be void. Cytek may assign this Agreement to an affiliate or a third party who acquires a controlling equity interest in Cytek or who acquires all or substantially all of its assets or the business to which this Agreement relates. The paragraph headings herein are for convenience only and form no part of this Agreement and shall not affect its interpretation. This Agreement shall be binding upon, inure to the benefit of, and be enforceable by, the parties hereto and their representatives, agents and permitted successors and assigns.

Purchase Order:	Cytek Biosciences, Inc.	Agreement With:	
Cytek Representative (Sign):		Customer Representative (Sign):	
Cytek Representative Name (Print)	Mike Nygard	Customer Representative Name (Print):	PING JIN